

Amendment No. 1 to SB0866

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 866

House Bill No. 734*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 28-3-202, is amended by deleting the section and substituting instead:

Except for actions brought pursuant to § 28-1-114(a), all actions, arbitrations, or other binding dispute resolution proceedings to recover damages for any deficiency in the design, planning, supervision, observation of construction, or construction of an improvement to real property, for injury to property, real or personal, arising out of any such deficiency, or for injury to the person or for wrongful death arising out of any such deficiency, must be brought against any person performing or furnishing the design, planning, supervision, observation of construction, or construction of the improvement within four (4) years after substantial completion of an improvement. A counterclaim or third party complaint authorized by this section must be brought in any action, arbitration, or other binding dispute resolution proceeding within five (5) years after substantial completion of an improvement.

SECTION 2. This act takes effect on July 1, 2026, the public welfare requiring it.